

Registre de Commerce et des Sociétés

Numéro RCS : B203873

Référence de dépôt : L230122407

Déposé et enregistré le 04/07/2023

OUADLSP20230522T14310901_002

RCSL Nr. : B203873

Matricule : 2016 2404 785

eCDF entry date : 30/06/2023

BALANCE SHEET**Financial year from** ⁰¹ 01/01/2022 **to** ⁰² 31/12/2022 (in ⁰³ EUR)

Alfamito

2A, rue Nicolas Bové

L-1253 Luxembourg

ASSETS

	Reference(s)	Current year	Previous year
A. Subscribed capital unpaid			
I. Subscribed capital not called	1101 _____	101 _____	102 _____
II. Subscribed capital called but unpaid	1103 _____	103 _____	104 _____
	1105 _____	105 _____	106 _____
B. Formation expenses	1107 _____	107 _____	108 _____
C. Fixed assets	1109 _____	109 <u>1,00</u>	110 <u>1,00</u>
I. Intangible assets	1111 _____	111 _____	112 _____
1. Costs of development	1113 _____	113 _____	114 _____
2. Concessions, patents, licences, trade marks and similar rights and assets, if they were	1115 _____	115 _____	116 _____
a) acquired for valuable consideration and need not be shown under C.I.3	1117 _____	117 _____	118 _____
b) created by the undertaking itself	1119 _____	119 _____	120 _____
3. Goodwill, to the extent that it was acquired for valuable consideration	1121 _____	121 _____	122 _____
4. Payments on account and intangible assets under development	1123 _____	123 _____	124 _____
II. Tangible assets	1125 _____	125 _____	126 _____
1. Land and buildings	1127 _____	127 _____	128 _____
2. Plant and machinery	1129 _____	129 _____	130 _____

The notes in the annex form an integral part of the annual accounts

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	Reference(s)	Current year	Previous year
3. Other fixtures and fittings, tools and equipment	1131 _____	131 _____	132 _____
4. Payments on account and tangible assets in the course of construction	1133 _____	133 _____	134 _____
III. Financial assets	1135 _____ 3	135 _____ 1,00	136 _____ 1,00
1. Shares in affiliated undertakings	1137 _____	137 _____ 1,00	138 _____ 1,00
2. Loans to affiliated undertakings	1139 _____	139 _____	140 _____
3. Participating interests	1141 _____	141 _____	142 _____
4. Loans to undertakings with which the undertaking is linked by virtue of participating interests	1143 _____	143 _____	144 _____
5. Investments held as fixed assets	1145 _____	145 _____	146 _____
6. Other loans	1147 _____	147 _____	148 _____
D. Current assets	1151 _____	151 _____ 305.399,68	152 _____ 415.791,31
I. Stocks	1153 _____	153 _____	154 _____
1. Raw materials and consumables	1155 _____	155 _____	156 _____
2. Work in progress	1157 _____	157 _____	158 _____
3. Finished goods and goods for resale	1159 _____	159 _____	160 _____
4. Payments on account	1161 _____	161 _____	162 _____
II. Debtors	1163 _____ 4	163 _____ 270.074,15	164 _____ 278.047,87
1. Trade debtors	1165 _____	165 _____	166 _____
a) becoming due and payable within one year	1167 _____	167 _____	168 _____
b) becoming due and payable after more than one year	1169 _____	169 _____	170 _____
2. Amounts owed by affiliated undertakings	1171 _____	171 _____ 266.074,15	172 _____ 264.577,87
a) becoming due and payable within one year	1173 _____	173 _____ 266.074,15	174 _____ 264.577,87
b) becoming due and payable after more than one year	1175 _____	175 _____	176 _____
3. Amounts owed by undertakings with which the undertaking is linked by virtue of participating interests	1177 _____	177 _____	178 _____
a) becoming due and payable within one year	1179 _____	179 _____	180 _____
b) becoming due and payable after more than one year	1181 _____	181 _____	182 _____
4. Other debtors	1183 _____	183 _____ 4.000,00	184 _____ 13.470,00
a) becoming due and payable within one year	1185 _____	185 _____ 4.000,00	186 _____ 13.470,00
b) becoming due and payable after more than one year	1187 _____	187 _____	188 _____

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	Reference(s)	Current year	Previous year
III. Investments	1189 _____	189 _____	190 _____
1. Shares in affiliated undertakings	1191 _____	191 _____	192 _____
2. Own shares	1209 _____	209 _____	210 _____
3. Other investments	1195 _____	195 _____	196 _____
IV. Cash at bank and in hand	1197 _____	197 <u>35.325,53</u>	198 <u>137.743,44</u>
E. Prepayments	1199 _____	199 _____	200 _____
TOTAL (ASSETS)		201 <u>305.400,68</u>	202 <u>415.792,31</u>

CAPITAL, RESERVES AND LIABILITIES

	Reference(s)	Current year	Previous year
A. Capital and reserves			
	1301 <u>5</u>	301 <u>-709.889,21</u>	302 <u>-623.126,59</u>
I. Subscribed capital	1303 _____	303 <u>12.500,00</u>	304 <u>12.500,00</u>
II. Share premium account	1305 _____	305 <u>24.875.000,00</u>	306 <u>24.875.000,00</u>
III. Revaluation reserve	1307 _____	307 _____	308 _____
IV. Reserves	1309 _____	309 _____	310 _____
1. Legal reserve	1311 _____	311 _____	312 _____
2. Reserve for own shares	1313 _____	313 _____	314 _____
3. Reserves provided for by the articles of association	1315 _____	315 _____	316 _____
4. Other reserves, including the fair value reserve	1429 _____	429 _____	430 _____
a) other available reserves	1431 _____	431 _____	432 _____
b) other non available reserves	1433 _____	433 _____	434 _____
V. Profit or loss brought forward	1319 _____	319 <u>-25.510.626,59</u>	320 <u>-3.026.633,35</u>
VI. Profit or loss for the financial year	1321 _____	321 <u>-86.762,62</u>	322 <u>-22.483.993,24</u>
VII. Interim dividends	1323 _____	323 _____	324 _____
VIII. Capital investment subsidies	1325 _____	325 _____	326 _____
B. Provisions	1331 _____	331 _____	332 _____
1. Provisions for pensions and similar obligations	1333 _____	333 _____	334 _____
2. Provisions for taxation	1335 _____	335 _____	336 _____
3. Other provisions	1337 _____	337 _____	338 _____
C. Creditors	1435 <u>6</u>	435 <u>1.015.289,89</u>	436 <u>1.038.918,90</u>
1. Debenture loans	1437 _____	437 _____	438 _____
a) Convertible loans	1439 _____	439 _____	440 _____
i) becoming due and payable within one year	1441 _____	441 _____	442 _____
ii) becoming due and payable after more than one year	1443 _____	443 _____	444 _____
b) Non convertible loans	1445 _____	445 _____	446 _____
i) becoming due and payable within one year	1447 _____	447 _____	448 _____
ii) becoming due and payable after more than one year	1449 _____	449 _____	450 _____
2. Amounts owed to credit institutions	1355 _____	355 _____	356 _____
a) becoming due and payable within one year	1357 _____	357 _____	358 _____
b) becoming due and payable after more than one year	1359 _____	359 _____	360 _____

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Matricule : 2016 2404 785

	Reference(s)	Current year	Previous year
3. Payments received on account of orders in so far as they are not shown separately as deductions from stocks	1361 _____	361 _____	362 _____
a) becoming due and payable within one year	1363 _____	363 _____	364 _____
b) becoming due and payable after more than one year	1365 _____	365 _____	366 _____
4. Trade creditors	1367 _____	367 <u>1.014.432,96</u>	368 <u>1.033.585,74</u>
a) becoming due and payable within one year	1369 _____	369 <u>1.014.432,96</u>	370 <u>1.033.585,74</u>
b) becoming due and payable after more than one year	1371 _____	371 _____	372 _____
5. Bills of exchange payable	1373 _____	373 _____	374 _____
a) becoming due and payable within one year	1375 _____	375 _____	376 _____
b) becoming due and payable after more than one year	1377 _____	377 _____	378 _____
6. Amounts owed to affiliated undertakings	1379 _____	379 _____	380 _____
a) becoming due and payable within one year	1381 _____	381 _____	382 _____
b) becoming due and payable after more than one year	1383 _____	383 _____	384 _____
7. Amounts owed to undertakings with which the undertaking is linked by virtue of participating interests	1385 _____	385 <u>856,68</u>	386 <u>518,16</u>
a) becoming due and payable within one year	1387 _____	387 <u>856,68</u>	388 <u>518,16</u>
b) becoming due and payable after more than one year	1389 _____	389 _____	390 _____
8. Other creditors	1451 _____	451 <u>0,25</u>	452 <u>4.815,00</u>
a) Tax authorities	1393 _____	393 <u>0,25</u>	394 <u>4.815,00</u>
b) Social security authorities	1395 _____	395 _____	396 _____
c) Other creditors	1397 _____	397 _____	398 _____
i) becoming due and payable within one year	1399 _____	399 _____	400 _____
ii) becoming due and payable after more than one year	1401 _____	401 _____	402 _____
D. Deferred income	1403 _____	403 _____	404 _____
TOTAL (CAPITAL, RESERVES AND LIABILITIES)		405 <u>305.400,68</u>	406 <u>415.792,31</u>

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PROFIT AND LOSS ACCOUNT**Financial year from** ⁰¹ 01/01/2022 **to** ⁰² 31/12/2022 (in ⁰³ EUR)

Alfamito

2A, rue Nicolas Bové

L-1253 Luxembourg

	Reference(s)	Current year	Previous year
1. Net turnover	1701 _____	701 _____	702 _____
2. Variation in stocks of finished goods and in work in progress	1703 _____	703 _____	704 _____
3. Work performed by the undertaking for its own purposes and capitalised	1705 _____	705 _____	706 _____
4. Other operating income	1713 _____	713 18.367,16	714 0,00
5. Raw materials and consumables and other external expenses	1671 _____	671 -101.967,94	672 -205.429,21
a) Raw materials and consumables	1601 _____	601 _____	602 _____
b) Other external expenses	1603 _____ 7	603 -101.967,94	604 -205.429,21
6. Staff costs	1605 _____	605 _____	606 _____
a) Wages and salaries	1607 _____	607 _____	608 _____
b) Social security costs	1609 _____	609 _____	610 _____
i) relating to pensions	1653 _____	653 _____	654 _____
ii) other social security costs	1655 _____	655 _____	656 _____
c) Other staff costs	1613 _____	613 _____	614 _____
7. Value adjustments	1657 _____	657 _____	658 _____
a) in respect of formation expenses and of tangible and intangible fixed assets	1659 _____	659 _____	660 _____
b) in respect of current assets	1661 _____	661 _____	662 _____
8. Other operating expenses	1621 _____	621 0,00	622 -26,41

The notes in the annex form an integral part of the annual accounts

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Matricule : 2016 2404 785

	Reference(s)	Current year	Previous year
9. Income from participating interests	1715	715	716
a) derived from affiliated undertakings	1717	717	718
b) other income from participating interests	1719	719	720
10. Income from other investments and loans forming part of the fixed assets	1721	721	722
a) derived from affiliated undertakings	1723	723	724
b) other income not included under a)	1725	725	726
11. Other interest receivable and similar income	1727	727	728
a) derived from affiliated undertakings	1729	729	730
b) other interest and similar income	1731	731	732
12. Share of profit or loss of undertakings accounted for under the equity method	1663	663	664
13. Value adjustments in respect of financial assets and of investments held as current assets	1665	665	666
14. Interest payable and similar expenses	1627	627	628
a) concerning affiliated undertakings	1629	629	630
b) other interest and similar expenses	1631	631	632
15. Tax on profit or loss	1635	635	636
16. Profit or loss after taxation	1667	667	668
17. Other taxes not shown under items 1 to 16	1637	637	638
18. Profit or loss for the financial year	1669	669	670

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Alfamito
Société à responsabilité limitée
Notes to the 2022 annual accounts
(expressed in EUR)

Note 1 - General information

Alfamito, hereinafter the "Company", was incorporated on February 4, 2016 as a "société à responsabilité limitée" for an unlimited period. The Company is organised under the laws of Luxembourg, in particular the law of August 10, 1915 on commercial companies, as amended.

The registered office of the Company is established in Luxembourg City and is registered at the Trade and Companies register in Luxembourg under the number B203873.

The financial year of the Company starts on January, 1 and ends on December, 31 of each year.

Object

The object of the Company is the acquisition of participations, in Luxembourg or abroad, in any companies or enterprises in any form whatsoever and the management of those participations. The Company may in particular acquire by subscription, purchase, exchange or in any other manner any stock, shares and/or other participations securities, bonds, debentures, certificates of deposit and/or other debt instruments and more generally any securities and financial instruments issued by any public or private entity. It may participate in the creation, development, management and control of any company or enterprise. Further, it may invest in the acquisition and management of a portfolio of patents or other intellectual property rights of any nature or origin.

The Company may borrow in any form whatsoever, except by way of public offer. It may issue, by way of private placement only, notes, bonds and any kind of debt and equity securities. The Company may lend funds including, without limitation, the proceeds of any borrowings, to its subsidiaries, affiliated companies and any other companies. The Company may also give guarantees and pledge, transfer, encumber or otherwise create and grant security over some or all of its assets to guarantee its own obligations and those of any other company and, generally, for its own benefit and that of any other company or person. For the avoidance of doubt, the Company may not carry out any regulated financial sector without having obtained the necessary authorization activity.

The Company may use legal means and instruments to manage its investments efficiently and protect itself against credit risks, currency exchange exposure, interest rates risks and other risks.

The Company may carry out any commercial, financial or industrial operations and any transaction with respect to real estate or movable property which, directly or indirectly favours or relates to its corporate object.

Consolidation

Pursuant to the legal provisions of the Article 1711-8 (3) 3° of the amended law of August 10, 1915, and the advice CNC 09/002 (previously, advice CNC 2-1 of December 18, 2009) called « advice private equity / venture capital », the Company is an investment company in risk capital having subsidiaries exclusively held with a view to their subsequent resale. As a consequence, the Company doesn't draw up and doesn't publish consolidated accounts. In accordance with the advice CNC 09/002, the fair value of the subsidiaries held with a view to their subsequent resale is disclosed in the notes to the annual accounts of the Company.

Note 2 - Summary of significant accounting policies

Basis of preparation

These annual accounts have been prepared in accordance with Luxembourg legal and regulatory requirements. Accounting principles and valuation rules are, besides the ones laid down by the Law, determined and applied by the managers (the "Board of Managers").

The preparation of annual accounts requires the use of certain critical accounting estimates. It also requires the Board of Managers to exercise their judgement in the process of applying the accounting policies. Changes in assumptions may have a significant impact on the annual accounts in the period in which the assumptions changed. Management believes that the underlying assumptions are appropriate and that the annual accounts therefore present the financial position and results fairly.

Significant accounting policies

The main valuation rules applied by the Company are the following:

Financial assets

Shares in affiliated undertakings or participating interests, loans to these undertakings / securities held as fixed assets and other loans are valued respectively at purchase price and nominal value (loans and claims) including the expenses incidental thereto.

In case the Board of Managers deems that there is a durable depreciation in value of the financial assets, value adjustments are booked, so that they are valued at the lower figure to be attributed to them at the balance sheet date. These value adjustments are not continued if the reasons for which the value adjustments were made have ceased to apply.

- Continued -

Note 2 - Summary of significant accounting policies (continued)

Significant accounting policies (continued)

Debtors

Debtors are valued at their nominal value. They are subject to value adjustments where their recovery is compromised. These value adjustments are not continued if the reasons for which they were made have ceased to apply.

Foreign currency translation

The Company maintains its accounting records in Euro (EUR) and the balance sheet and the profit and loss accounts are expressed in this currency.

Transactions expressed in currencies other than EUR are translated into EUR at the exchange rate effective at the time of the transaction.

Long term assets and liabilities expressed in currencies other than EUR are translated into EUR at the exchange rate effective at the time of the transaction. At the balance sheet date, these items remain translated at historical exchange rates.

Cash at bank is translated at the exchange rate effective at the balance sheet date. Exchange losses and gains are recorded in the profit and loss account of the year.

In accordance with prudence principles found within generally accepted accounting principles in Luxembourg ("LuxGaap"), other assets are translated separately, at the lower of the value converted using the historical exchange rate and the value converted using the exchange rate at the balance sheet date. Conversely, other liabilities are translated separately, at the higher of the value converted using the historical exchange rate and the exchange rate at the balance sheet date. Consequently, both realised and unrealised exchange losses are recorded in the profit and loss account while exchange gains are recorded in the profit and loss account at the moment of their realisation only.

Where there is an economic link between an asset and a liability, these are valued in total according to the method described above and the net unrealised loss is recorded in the profit and loss account while the net unrealised exchange gains are not recognised.

Creditors

Creditors are recorded at their reimbursement value. Where the amount repayable on account is greater than the amount received, the difference is shown in the profit and loss account when the debt is issued.

Current tax provision

Provisions for taxation corresponding to the tax liability estimated by the Company for the financial years for which the tax return has not yet been filed are recorded under the caption "Tax authorities". The advance payments are shown in the assets of the balance sheet under the "Other debtors" item.

Net turnover

The net turnover comprises the amounts derived from the sale of products and the provision of services falling within the Company's ordinary activities, after deductions of sales rebates and of value added tax and other taxes directly linked to the turnover.

Note 3 - Financial assets

a) The movements of the year are as follows:

	Affiliated undertakings Shares EUR	Total EUR
Acquisition cost - opening balance	22.280.006,00	22.280.006,00
Additions for the year	-	-
Disposals for the year	-	-
Transfers for the year	-	-
Acquisition cost - closing balance	22.280.006,00	22.280.006,00
Value adjustments - opening balance	(22.280.006,00)	(22.280.006,00)
Allocations for the year	-	-
Reversals for the year	-	-
Transfers for the year	-	-
Value adjustments - closing balance	(22.280.006,00)	(22.280.006,00)
Net book value - closing balance	1,00	1,00
Net book value - opening balance	1,00	1,00

- Continued -

Note 3 - Financial assets (continued)

b) Undertakings in which the Company holds interests in their share capital are as follows:

Undertaking's name	Registered office	Percentage of holding	Last balance sheet date	Net equity at the last balance sheet date KEUR	Result for the last financial year KEUR	Net book value 2022 EUR	Net book value 2021 EUR
Alfatherm S.p.A.	Italy	100,00%	31/12/2022	3.857	(8.500)	1,00	1,00
Total						1,00	1,00

At the end of the year 2022, the Board of Managers decided to book a value adjustment of EUR 22.280.005,00.

Note 4 - Debtors

	Within one year	After more than one year	Total 2022 EUR	Total 2021 EUR
<u>Amounts owed by affiliated undertaking :</u>				
Alfatherm SpA - Cash advance USD (*)	83.074,15	-	83.074,15	81.577,87
Alfatherm SpA - Cash advance EUR (*)	183.000,00	-	183.000,00	183.000,00
<u>Other debtors :</u>				
Advance to Mito Ultimate Holdings (*)	4.000,00	-	4.000,00	4.000,00
NWT Advance 2021	-	-	-	9.470,00
Total	270.074,15	-	270.074,15	278.047,87

(*) This amount does not bear interests and has no maturity date.

Note 5 - Capital and reserves

Subscribed capital

The subscribed capital of the Company amounts to EUR 12.500,00 and is divided into 12.500 shares fully paid up with a nominal value of EUR 1,00 each.

Share premium and similar premiums

The movements on the "Share premium and similar premiums" item during the year are as follows:

	Share premium EUR
Opening balance	24.875.000,00
Additions for the year	-
Disposals for the year	-
Closing balance	24.875.000,00

Legal reserve

Luxembourg companies are required to allocate to a legal reserve a minimum of 5% of the annual net income until this reserve equals 10% of the subscribed share capital. This reserve may not be distributed.

Movements for the year on the reserves and profit/loss items

	Legal reserve EUR	Reserve for own shares EUR	Other reserves EUR	Results brought forward EUR	Result for the year EUR	Interim dividends EUR
As at the beginning of the year	-	-	-	(3.026.633,36)	(22.483.993,24)	-
<u>Allocation of the prior year's result:</u>						
Allocation to the legal reserve	-	-	-	-	-	-
Allocation to the result brought forward	-	-	-	(22.483.993,24)	22.483.993,24	-
Other movements	-	-	-	-	-	-
Result for the year					(86.762,62)	
As at the end of the year	-	-	-	(25.510.626,59)	(86.762,62)	-

- Continued -

Note 6 - Creditors

	Within one year	After more than one year	Total 2022 EUR	Total 2021 EUR
Trade creditors :	1.014.432,96	-	1.014.432,96	1.033.585,74
Amounts owed to undertakings with which the undertaking is linked by virtue of participating interests :				
OGCP SARL (*)	856,68	-	856,68	518,16
Other creditors :				
Estimated NWT 2021	-	-	-	4.815,00
Tax payable NWT 2022	0,25	-	0,25	-
Total	1.015.289,89	-	1.015.289,89	1.038.918,90

Note 7 - Other external expenses

This item is detailed as follows:	2022 EUR	2021 EUR
Bank charges	(3.638,20)	(3.074,70)
Legal fees	(9.273,51)	-
Professional fees	(14.404,77)	(17.788,58)
Other fees	(74.301,46)	(184.215,93)
Contribution to professional organisations	(350,00)	(350,00)
	(101.967,94)	(205.429,21)

Note 8 - Staff

The Company had no employees during the financial year 2022 (2021: nil).

Note 9 - Taxation

The Company is subject to the general tax regulation applicable to all Luxembourg commercial companies.

Note 10 - Off balance sheet commitments and contingencies

As from 2005, the original shareholders of Alfatherm entered into a pledge agreement with multiple banks in order to obtain financing from them. As a result of additional required financing over the years, this agreement was amended several times to confirm and extend the pledge over the shares in relation to such new additional financing.

During 2016, Alfamito purchased from the original shareholders all (100%) of the shares in Alfatherm by way of a share purchase agreement, therefore becoming Alfatherm's sole shareholder, without prejudice to the pledge agreement. Further to a restructuring in the same year, the original banks were substituted by new banks, which reimbursed the original debt vis-à-vis the original banks, and provided additional financing to Alfatherm, without prejudice to the pledge agreement. The pledge agreement was further amended to confirm and extend the pledge over the shares of Alfatherm in relation to such new additional financing.

As per the agreement, the following, inter alia, has been pledged:

- all the shares of Alfatherm, representing its entire share capital;
- all future shares to be issued by Alfatherm;
- dividends; and
- all option, conversion and contractual rights in the shares of Alfatherm.

Note 11 - Subsequent events

No other matters or circumstances of importance than those already described in the present notes to the accounts have arisen since the end of the financial year which could have significantly affected or might significantly affect the operations of the Company, the results of those operations or the affairs of the Company.

Alfamito
Société à responsabilité limitée
Siège social: 2A, rue Nicolas Bové L-1253 Luxembourg
R.C.S. Luxembourg: B203873

Constituée en date du 4 février 2016 par acte devant Maître Léonie Grethen, notaire de résidence à Luxembourg, publié au Mémorial, Recueil des Sociétés et Associations C numéro 1335 du 7 mai 2016.

Les statuts de la Société ont été modifiés par acte devant Maître Henri Beck, notaire de résidence à Echternach, en date du 23 février 2017, publié au RESA, Recueil Electronique des Sociétés et Associations, sous la référence RESA_2017_055.523 du 2 mars 2017.

AFFECTATION DU RESULTAT AU 31 DECEMBRE 2022

Résultat reporté de l'exercice 2021:	(EUR 25.510.626,59)
Résultat de l'exercice:	(EUR 86.762,62)
Résultat à reporter:	(EUR 25.597.389,21)

COMPOSITION DU CONSEIL DE GERANCE

- Monsieur Julien LAGREZE, gérant de classe A ;
- Monsieur Shahram HAGHIGHI, gérant de classe A ;
- Monsieur Benoît BAUDUIN, gérant de classe B ; et
- Monsieur Benjamin CHOURAKI, gérant de classe B.

Luxembourg, le 3 juillet 2023